

Constitutional and Non-Constitutional Bodies														
Body	Articles/Acts	Head	Members	Appointment	Term	Qualifications	Conditions	Resignation to	Removal	Future Employment	Second term	Expenses	Ministry	Notes
Constitutional Bodies														
Election Commission	324	CEC	ECs - number fixed by President	President	-	None	President, cannot be varied.	President	CEC = SC judge, ECs and regional: on CEC's recommendation	Allowed				
UPSC	315 to 323	Chair	Fixed by President (usually 9-11)	President	6/65	Half should have been in central or state government for 10 years	President, cannot be varied.	President	President: insolvency, paid employment, infirmity. Misbehaviour, with SC enquiry (advice binding)	Not allowed	Not allowed	CFI	Ministry of Personnel	
SPSC	315 to 323	Chair	Fixed by Governor	Governor	6/62	Half should have been in central or state government for 10 years	Governor, cannot be varied.	Governor	President: insolvency, paid employment, infirmity. Misbehaviour, with SC enquiry (advice binding)	Not allowed	Not allowed	CFS		
Finance Commission	280	5		President		Parliament (FC Act, 1951) Chair: experience in public affairs 1. HC judge or qualified 2. Knowledge of finance and accounts 3. Experience in financial matters and administration 4. Special knowledge of economics							Ministry of Finance	Every 5 years or earlier
		Chair	4											
CAG	148	-	-	President	6/65 (CAG Act, 1971)		Parliament, cannot be varied. Salary = SC judge.	President	Same as SC judge	Not allowed		CFI		
Attorney General	76	-	-	President	-	Qualified as SC judge	President	President	Pleasure of President	Allowed				
Advocate General of state	165	-	-	Governor	-	Qualified as HC judge	Governor	Governor	Pleasure of Governor	Allowed				
Special Officer for Linguistic Minorities	350B (7Am1956)	-	-	President	-	-	-	-	-	-	-	-	Ministry of Minority Affairs	
National Commission for SCs	338	Chair	Vice-Chair, 3	President	President	-	President	Original 338: Special Officer for SCs and STs (Commissioner for SCs and STs) 1978: Resolution -> Multi-Member Commission -> 1987 -> National Commission for SCs and STs 65Am1990: Multi-member National Commission for SCs and STs 89Am2003: Bifurcated					Ministry of Social Justice	
National Commission for STs	338A	Chair	Vice-Chair, 3	President	President	-	President						Ministry of Tribal Affairs	
National Commission for BCs	338B	Chair	Vice-Chair, 3	President	President	-	President						1993 Statutory 102Am2018 Constitutional	Ministry of Social Justice
Non-Constitutional Bodies														
NHRC	Protection of Human Rights Act, 1993	Chair	5 7 ex-officio: Chairs of NCM, NCW, NCSC, NCST, NCBC, NGPCR, Chief Commissioner for PwD	President	3/70	Chair: Retired CJI or SC judge Serving/retired SC judge, Serving/retired HC CJ, 3 persons with special knowledge or experience in human rights	Centre, cannot be varied	President	President: insolvency, paid employment, infirmity, unsound mind, imprisonment. Misbehaviour, with SC enquiry (advice binding)	Not allowed	Allowed			Human Rights Courts in every district under the Act - set up by state with HC CJ concurrence. Public prosecutor or advocate with 7y exp for each HRC.
SHRC		Chair	2 Governor Selection Committee: CM (c), Home Minister, LA & LC Speakers, LA & LC LOP	Governor	3/70	Chair: Retired CJ or HC judge 1. Serving/retired HC judge or District Judge of 7 years 2. Knowledge or experience in human rights	State, cannot be varied	President	NHRC	Not allowed				
Central Information Commission	RTI Act, 2005	CIC	Max. 10 ICs President Selection Committee: PM (c), Minister nom by PM, LS LOP	President	Centre	Persons of eminence in public life with wide experience. Not MP or MLA, office of profit, other profession etc.	Centre				Not allowed			
State Information Commission		SCIC	Max. 10 ICs Governor Selection Committee: CM (c), Minister nom by CM, LA LOP	Governor	Centre	Persons of eminence in public life with wide experience. Not MP or MLA, office of profit, other profession etc.	Centre				Not allowed			
Central Vigilance Commission	CVC Act, 2003 (originally by resolution, 1964)	CVC	Max. 2 VCs President Selection Committee: PM (c), Home Minister, LS LOP	President	4/65	-	Same as UPSC, cannot be varied		President: insolvency, paid employment, infirmity, unsound mind, offence with moral turpitude, financial interest. Misbehaviour, with SC enquiry (advice binding)	Not allowed				
Lokpal	Lokpal and Lokayuktas Act, 2013	Chair	Max. 8 members Selection Committee: PM (c), LS Speaker, LS LOP, CJI or nom SC judge, Eminent jurist nom by President reco by other 4 Search Committee to assist (50% reserved)			50% judicial, 50% from SCs, STs, OBCs, minorities, women								

Criteria	CVC	CBI	NIA	LOKPAL/LOKAYUKTAS
Origin & Status	Statutory body, CVC Act, 2003 (est on recommendation by Santhanam Committee in 1964 by executive resolution, conferred statutory status in 2004)	Non statutory body, set up in 1963- resolution of Home Ministry later transferred to Min of Personnel (est on recommendation by Santhanam Committee). Comes under administrative control of DoPT. It derives power from DSPE Act, 1946	Statutory, NIA Act, 2008 (after Mumbai terror attack) Work under administrative control of Home Ministry. It is central counter terrorism law enforcement agency.	Lokpal and Lokayukta Act, 2013 provided for the establishment of Lokpal for the Union and Lokayukta for States; statutory bodies without any constitutional status. (1 st country Sweden). terms Lokpal and Lokayukta were coined by Dr L. M. Singhvi.
Composition	Multi-Member- Central Vigilance Commissioner and not more than 2 vigilance commissioners	Headed by Director	Headed by Director-General	multi-member- 1 chairperson and max 8 members.
Appointment	By PRESIDENT by warrant under his hand and seal, on recommendation of- PM, Union Home Minister and Leader of Opposition (LS)	Central Govt appoint Director on 3 member committee recommendation- PM, Leader of Opposition (LS), CJI OR Judge of SC nominated by him (Lokpal Act, 2013 mandated) (Note: when leader of opposition not present then leader of single largest group in opposition in LS- this change made by DSPE (Amendment), 2014)		By PRESIDENT on the recommendation of a Selection Committee- Prime Minister who is the Chairperson; Speaker of Lok Sabha, Leader of Opposition in Lok Sabha, Chief Justice of India or a Judge nominated by him/her and One eminent jurist. For selecting the chairperson and the members, the selection committee constitutes a search panel of at least eight persons. DoPT is supposed to put together a list of candidates interested to be the chairperson or members. This list would then go to the proposed eight-member search committee, which would shortlist names and place them before the selection panel headed by the Prime Minister. selection panel may or may not pick names suggested by the search committee. 2013 Act also provides that all states should set up the office of the Lokayukta within one year from the

				commencement of the Act.
Qualifications				Chairperson- former Chief Justice of India or the former Judge of Supreme Court or an eminent person with impeccable integrity and outstanding ability, having special knowledge and expertise of minimum 25 years in the matters relating to anti-corruption policy, public adm etc. Out of the maximum eight members, half will be judicial members and minimum 50% of the Members will be from SC/ ST/ OBC/ Minorities and women. judicial member of the Lokpal either a former Judge of the Supreme Court or a former Chief Justice of a High Court.
Tenure & Service Conditions	both chairman & member)- 65/4yrs Salary, Allowances and other condition of services of CVC are similar to Chairman of UPSC and that of Vigilance Commissioners are similar to members of UPSC.BUT cannot be varied to his disadvantage	2 yr security of tenure by CVC Act,2003. Director of Prosecution(officer not below rank of joint secretary)appointed on CVC recommendation have 2yr tenure. It work under CBI Director supervision		(both chairman & member)- 70/5yrs The Salary allowances and other conditions of service of the chairperson and members are equivalent to that of Chief Justice of India and Judge of the supreme court respectively.

Removal	PRESIDENT Insolvent, job outside commission, infirmity of mind(in president opinion), convicted for offence involve morale turpitude (in central govt opinion), acquired such financial or other interest which likely to affect prejudicially his function; Proved misbehaviour or incapacity: President shall refer the matter to SC and act accordingly			PRESIDENT To remove the Lokpal 100 members of the Parliament need to sign the petition seeking the removal of the chairman of the Lokpal or any other members. This matter will be investigated by the Supreme Court and if SC finds the charges to be true then SC suggests the president to remove the Lokpal from the post. Another way to remove the Lokpal is self reference of the President (on the advice of the cabinet) to the Supreme Court, which can investigate the charges.
Post Retirement Employment	Not eligible			Cannot hold any constitutional or govt office; cannot contest election for 5yrs
Reappointment				Lokpal is not eligible for reappointment , but Lokpal members can become the Chairperson if the tenure is left (If they have age less than 70 years).
Functions	To inquire or investigation on reference made by Central Govt against public authority under PCA,1988; superintendence and review progress of CBI in cases related to PCA,1988; Central govt consult CVC in making rules governing vigilance and disciplinary matter relating to Central Services & All India Services;CVC is chairperson and 2 Vigilance Commissioners+ secretaries of home ministry, d/o of personnel + d/o revenue appoint Director Of ENFORCEMENT;this committee + enforcement directly recommend officers to post above Deputy Director Of	Investigating cases related to Central govt employees; related to export import control,custom & excise, income tax, foreign exchange but such cases are taken up either in consultation with or at request of dept concerned; taking cases on request of State Govt of public importance. Normally confine to anti-corruption cases against central and UT employee and psu but also takes cases of conventional crimes(kidnapping,murder) on reference from state govt or SC/HC.	Investigate and prosecute offence mention in schedule of NIA act, offence affecting sovereignty, security,terror attack, hijacking, human trafficking, counterfeit currency, cyber terrorism, sale of prohibited arms. Provision of NIA act also applies to INDIAN citizen outside INDIA. Officers have same power,duties and liabilities being exercised by police officers in connection of	Includes Prime Minister, current or former ministers/MP, Groups A, B, C and D officers and officials of Central Government. Jurisdiction of the Lokpal included the Prime Minister except on allegations of corruption relating to international relations, security, the public order, atomic energy and space. Lokpal does not have jurisdiction over Ministers and MPs in the matter of anything said in Parliament or a vote given. powers to superintendence over, and to give direction to CBI, If Lokpal has referred a case

	Enforcement; Specific authority to receive info relating to suspicious transaction under PMLA, 2002 LOKPAL ACT, 2013- Director of Prosecution in CBI appointed by govt on CVC recommendation, CVC is chairperson and 2 Vigilance Commissioners+ secretaries of home ministry, d/of personnel recommend govt for appointment of post of SP and above in CBI (EXCEPT CBI DIRECTOR); POWER to regulate its own procedure, power of civil court; if govt not agree with CVC advice it shall communicate reasons. Jurisdiction- AIS, Group A Cental Services, GP D & above in RBI, NABARD, SIDBI, Managers of GIC & LIC. NOTE: CVC is not investigating agency. It either get the investigation done by CBI or through Departmental Chief Vigilance Officers. CVC orders investigation into cases of officials of CENTRAL GOVT only under PCA, 1988	Act as National Cental Bureau of INTERPOL in India. CBI need prior sanction of central govt to conduct probe against senior bureaucrats under PCA, 1988. SPE (division of CBI) shall take up cases which are substantially concerned central govt affairs or employees even if they involve state govt employees. Similarly State Police shall take up cases which are substantially concerned state govt affairs or employees even if they involve central govt employees. CBI has 7 division- Anti corruption, economic offence, special crimes, policy & coordination, administrative, directorate of prosecution, central forensic science lab	offence not only on in India but also outside. Central and State Govt may designate Sessions Court as Special Court for trails under NIA Act.	to CBI, the investigating officer in such case cannot be transferred without the approval of Lokpal, Act also includes the Lokpal's own members, entities receiving foreign fund under FCRA in excess of 10 lakhs comes under lokpal. On complaint refer to CVC by lokpal, CVC send its report back to lokpal wrt Group A & GP B services for further decision but wrt GP C & GP D CVC will proceed further in exercise of its own power under CVC act subject to review by LOKPAL; lay down clear timelines Institutions fully or partly financed by govt comes under lokpal but institution aided are excluded. Foreign nationals can also lodge complaints, o complaints can be filed against a public servant under the Army Act, Navy Act, Air Force Act and the Coast Guard Act. exclusion of judiciary and from the ambit of the Lokpal. not given any constitutional backing; cannot proceed suo motto, anonymous complaint not allowed, limitation period of 7 yr to file complaint. Lokayuktyas structure vary from state to state. complaint under this Act shall only relate to a period during which the public servant was holding or serving in that capacity. The following persons cannot become chairperson of Lokpal: MPs and MLAs Persons convicted of any offense
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				involving moral turpitude Less than 45 years of age, Members of Panchayats or Municipality, A person who was removed or dismissed from the public service, A person who holds any office of trust / profit; if so, he would need to resign from Lokpal. A person who is affiliated to a political party Carries on some business / profession; if so, he would need to quit some business. Lokpal and Lokayuktas (Amendment) Act, 2016- Bill replaces these provisions to state that a public servant will be required to declare his assets and liabilities. However, the form and manner of making such a declaration will be prescribed by the central government.
Report	PRESIDENT	State Govt	Central Govt	

Criteria	NHRC	SHRC	CIC	SIC
Origin & Status	Statutory, protection of human right act,1993	Statutory, protection of human right act,1993. (26 states have SHRC except Arunachal,Naga, Mizoram	Statutory, RTI Act,2005 High powered independent body	Statutory, RTI Act,2005 High powered independent body
Composition	Multi member- Chairperson + 5 member Chairman- retired CJI or judge of SC Members- serving or retired judge of SC, serving or retired CJ of HC & 3 persons (atleast 1 woman) having human right knowledge 7 ex-officio member- chairperson of NCSC,NCST,NCBC,NC for Minorities, NC for Women, NC for Child Rights, Chief Commissioner for Person with Disabilities	Multi member- Chairperson + 2 member Chairman- retired CJ or judge of HC Members- serving or retired judge of HC or District Judge with min 7yr experience & persons having human right knowledge	Multi member- CIC and not more than 10 other commissioners(orig inally 5 member, currently 6+1)	Multi member- State CIC and not more than 10 other State Information commissioners(strength of IC vary from state to state)
Appointment	By PRESIDENT on recommendation of 6 member committee- PM(head), SPEAKER(LS), Deputy Chairman(RS), Leader of Opposition of both Houses, Home Minister. (Note: sitting judge of SC or sitting CJ of HC appointed after CJI consultation	By GOVERNOR on recommendation committee- CM(head), SPEAKER(Assembly), Leader of Opposition (Assembly), State Home Minister. In case State having Council also then Chairman(Council) & Leader of Opposition in Council. (Note: sitting judge of HC or sitting District Judge appointed after CJ of HC consultation	By PRESIDENT on recommendation of committee- PM, Leader of Opposition(LS), Union Cabinet Minister nominated by PM (Note: when leader of opposition not present then leader of single largest group in opposition in LS)	By GOVERNOR on recommendation of committee- CM, Leader of Opposition(ASSEMBLY), State Cabinet Minister nominated by CM (Note: when leader of opposition not present then leader of single largest group in opposition in Assembly)
Qualifications	Already covered in composition	Already covered in composition	Person of eminence in public life with knowledge in law, science & tech, social service etc. Should not be MP/MLA/don't hold office of profit or connected to political party or	Person of eminence in public life with knowledge in law, science & tech, social service etc. Should not be MP/MLA/don't hold office of profit or connected to political party or carrying any

			carrying any business or pursuing profession	business or pursuing profession
Tenure & Service Conditions	(both chairman & member)- 70/3years Salary, Allowances and other condition of services determined by Central Govt but cannot be varied to his disadvantage	(both chairman & member)- 70/3years Salary, Allowances and other condition of services determined by State Govt but cannot be varied to his disadvantage	(both chairman & member)- hold office as prescribed by Central Govt or 65yr age Salary, Allowances and other condition of services determined by Central Govt but cannot be varied to his disadvantage	(both chairman & member)- hold office as prescribed by Central Govt or 65yr age Salary, Allowances and other condition of services determined by Central Govt but cannot be varied to his disadvantage
Removal	PRESIDENT Insolvent, job outside commission, infirmity of mind, unsound mind (declared by court), convicted & sentenced to imprisonment. Proved misbehaviour or incapacity: President shall refer the matter to SC and act accordingly	PRESIDENT Insolvent, job outside commission, infirmity of mind, unsound mind (declared by court), convicted & sentenced to imprisonment. Proved misbehaviour or incapacity: President shall refer the matter to SC and act accordingly	PRESIDENT Insolvent, job outside commission, infirmity of mind, convicted for offence involve morale turpitude (in President opinion), acquired such financial or other interest which likely to affect prejudicially his function Proved misbehaviour or incapacity: President shall refer the matter to SC and act accordingly	GOVERNOR Insolvent, job outside commission, infirmity of mind, convicted for offence involve morale turpitude (in President opinion), acquired such financial or other interest which likely to affect prejudicially his function Proved misbehaviour or incapacity: Governor shall refer the matter to SC and act accordingly
Post Retirement Employment	Not eligible	Not eligible		
Reappointment	Eligible	Eligible	Not eligible(but Information Commissioners(IC) eligible for CIC BUT cannot hold office for more than total 5ys including his term as IC	Not eligible(but state Information Commissioners(SIC) eligible for STATE CIC BUT cannot hold office for more than total 5ys including his term as SIC

Functions	Inquire either suo motto or on petition, intervene in any proceeding pending before court, visit jails, review factor including act of terrorism that inhibits human right. Power to regulate its procedure. Power of civil court, have own investigation staff. ONLY RECOMMENDATION, no power to punish nor to award monetary relief. RECOMMENDATION NOT BINDING on govt. Govt inform on action taken in 1 month(in armed forces case – 3 month). NOT empowered to look into cases after 1 year.	Central Govt may confer functions relating to human rights discharged by UT to SHRC, except UT of DELHI. Function relating to DELHI dealt by NHRC. Inquire either suo motto or on petition, intervene in any proceeding pending before court, visit jails, review factor including act of terrorism that inhibits human right. Power to regulate its procedure. Power of civil court, have investigation staff ONLY RECOMMENDATION, no power to punish nor to award monetary relief. RECOMMENDATION NOT BINDING on govt. Govt inform on action taken in 1 month	Inquire into complaint received for refusal of info, unreasonable fees charged; directing public authority to appoint PIOs; seek annual report from public authority; power to secure compliance of its decisions; make changes in maintenance, management and destruction of record; suo motto power; power of civil court, compel person to give oral or written evidence on oath; require public authority to compensate for any loss to applicant; impose penalties; recommend disciplinary action; Entertain complaints pertaining to offices, financial institutions, PSUs under Central Govt and UT.	Inquire into complaint received for refusal of info, unreasonable fees charged; directing public authority to appoint PIOs; seek annual report from public authority; power to secure compliance of its decisions; make changes in maintenance, management and destruction of record; suo motto power; power of civil court, compel person to give oral or written evidence on oath; require public authority to compensate for any loss to applicant; impose penalties; recommend disciplinary action; Entertain complaints pertaining to offices, financial institutions, PSUs under Central Govt and UT.
Report	To Central govt and State govt	State Govt	Central Govt	State Govt